

CODE OF CONDUCT

* CODE OF CONDUCT TO BE OBSERVED BY JUDGES OF THE
SUPREME COURT AND OF THE HIGH COURTS OF PAKISTAN

The Prime duty of Judge as an individual is to present before the public an image of the justice of the nation. As a member of his Court, that duty is brought within the disciplines appropriate to a corporate body.

The Constitution, by declaring that all authority exercisable by the people is a sacred trust from Almighty Allah, makes it plain that the justice of this nation is of Divine origin. It connotes full implementation of the high principles which are woven into the Constitution, as well as the universal requirements of natural justice. The oath of a Judge implies complete submission to the Constitution, and under the Constitution to the law. Subject to these governing obligations, his function of interpretation and application of the Constitution and the law is to be discharged for the maintenance of the Rule of Law over the whole range of human activities within the nation.

To be a living embodiment of these powers, functions and obligations calls for possession of the highest qualities of intellect and character. Equally, it imposes patterns of behaviour which are the hall-mark of distinction of a Judge among his fellow-men.

In this Code an attempt is made to indicate certain traditional requirements of behaviour in the Judges of the Superior Courts, conducive to the achievement of a standard of justice worthy of the nation.

209(2)

3 Framed under Art 148(4) of the Constitution

ARTICLE I (General)

On equiponderance stand the heavens and the earth. By equiponderance, oppression meaning unjust and unequal burdens, is removed. The Judge's task is to secure that such equality should prevail in all things.

ARTICLE II (Judicial qualities)

A Judge should be God-fearing, law-abiding, abstemious, truthful of tongue, wise in opinion, cautious and forbearing, blameless, untouched by greed.

While dispensing justice, he should be strong without being rough, polite without being weak, awe-inspiring in his warnings and faithful to his work, always preserving calmness, balance and complete detachment, for the formation of correct conclusions in all matters coming before him.

In the matter of taking his seat, of his personal behaviour when in his seat and of rising from his seat, he shall be punctilious in point of time, mindful of the formal courtesies, careful to preserve the dignity of the Court, while maintaining an equal aspect towards all litigants as well as all lawyers appearing before him.

ARTICLE III

To be above reproach, and for this purpose to keep his conduct in all things, official and private, free from impropriety is expected of a Judge.

ARTICLE IV

A Judge must decline resolutely to act in a case involving his own interest, including those of persons whom he regards and treats as near relatives or close friends.

A Judge must rigidly refrain from entering into or continuing any business dealing, howsoever unimportant it may be, with any party to a case before him. Should the dealing be unavoidable, he must discontinue its connection with the case forthwith.

A Judge must refuse to deal with any case in which he has a connection with one party or its lawyer more than the other, or even with both parties and their lawyers.

To ensure that justice is not only done, but is also seen to be done, a Judge must avoid all possibility of his opinion or action in any case being swayed by any consideration of personal advantage, either direct or indirect.

ARTICLE V

Functioning as he does in full view of the public, a Judge gets thereby all the publicity that is good for him. He should not seek more. In particular, he should not engage in any public controversy, least of all on a political question, notwithstanding that it involves a question of law.

ARTICLE VI

A Judge should endeavour to avoid, as far as possible, being involved in litigation either on his own behalf or on behalf of others. In particular he

should not involve himself in activities such as industry, trade, or speculative transactions, for the pursuit of wealth can never be the objective of a Judge.

To employ the influence of his position to gain undue advantage, whether immediate or future, is a grave fault.

A Judge must avoid incurring financial or other obligations to private institutions or persons such as may embarrass him in the performance of his functions.

ARTICLE VII

Extra-judicial duties or responsibilities, official or private, should be generally avoided. He should equally avoid being a candidate for any elective office in any organisation whatsoever.

ARTICLE VIII

Gifts are to be received only from near relatives and close friends, and only such as are customary. Everything in the way of favours in consequence of the office must be refused. In accepting any entertainment offered, whether general or particular, care should be taken that its real purpose does not conflict with a Judge's duty to maintain detachment from likely litigants, and from partisan activity.

ARTICLE IX

In his judicial work, and his relations with other Judges, a Judge should act always for the maintenance of harmony within his own Court, as well as among all Courts and for the integrity of the institution of justice. Disagreement with the opinion of any Judge, whether of equal or of inferior status, should invariably be expressed in terms of courtesy and restraint.

ARTICLE X

In his judicial work a Judge shall take all steps to decide cases within the shortest time, controlling efforts made to prevent early disposal of cases and make every endeavour to minimize suffering of litigants by cases expeditiously through proper written judgments. A Judge who is unmindful or indifferent towards this duty is not faithful to his work, which is a grave fault.